

ANNEXURE – A

On Non-Judicial Stamp Paper of Rs.300/-

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DECLARATION IN RESPECT OF CONFLICT OF INTEREST

TENDER NO: 1

Sr. No.	Particulars			
01	Name of Firm	2		
02	Office Address Phone No. Fax No. Email ID	3		
03	Works Address as per Vendor Registration Phone No. Fax No. Email ID	4		
04	Type of Firm	Private Limited Company / Public Limited Company / Limited Liability Partnership (LLP) / Partnership Firm / Proprietor Firm (Tick whichever is applicable)		
05	CIN / LLPIN of Firm	6		
06	GST No. of Firm	7		
07	Names of all Directors/LLP Partners/ Partners / Proprietors of Bidder Firm with DIN (if any) and full address (as on the bid submission date)			
	Sr. No.	Full Name	DIN	Full Residential Address
	1	8	9	10
	2	11	12	13
	3	14	15	16
	4	17	18	19
5	20	21	22	

The details of Legal Representative / Agent of the Bidder Firm are as under:

Full Name of Legal Representative / Agent	23
Whether employee of Bidder-Firm or not? (Yes/No)	24
Designation	25
Office Address	26
Office Land-line Nos.	27
28 Signature	29 Stamp / Round Seal

- d) they have relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the bid of another bidder; or
- e) bidder participates in more than one bid in this bidding process. Participation by a bidder in more than one Bid will result in the disqualification of all bids in which the parties are involved. However, this does not limit the inclusion of the components/ sub-assembly/ assemblies from one bidding manufacturer in more than one bid.
- f) in cases of agents quoting in offshore procurements, on behalf of their principal manufacturers, one agent cannot represent two manufacturers or quote on their behalf in a particular tender enquiry. One manufacturer can also authorize only one agent/ dealer. There can be only one bid from the following:
1. The principal manufacturer directly or through one Indian agent on his behalf; and
 2. Indian/ foreign agent on behalf of only one principal.
- g) a Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the Bid;
- h) In case of a holding company having more than one independently manufacturing units or more than one unit having common business ownership / management, only one unit should quote. Similar restrictions would apply to closely related sister companies. Bidders must proactively declare such sister/ common business/ management units in same/ similar line of business.
- i) Bidder shall not act in contravention/ violation to the provisions of competition act, as amended from time to time."

We hereby certify that our Firm M/s. _____ (Firm Name) do not have any conflict of interest with other bidders for particular quoted item viz. _____ (Item Name) .

We hereby declare and confirm that the above information and particulars are true and correct.

For _____ (Firm Name)

Place:

Signature of Director / Partner
/ Proprietor / Authorized Signatory

Date:

Stamp / Seal of Firm

Name:

Designation:

Signature

Stamp / Round Seal

Mobile No.	
Email ID	
Whether acting as Legal Representative / Agent in any other Private Limited Company or Public Limited Company or Limited Liability Partnership (LLP) or Partnership Firm or Proprietor Firm? If yes, give names.	

WE HEREBY DECLARE AND CONFIRM THAT no bid has been submitted for the quoted item by any other Private Limited Company or Public Limited Company or Limited Liability Partnership (LLP) or Partnership Firm or Proprietor Firm in which any relative of any Director or Partner or Proprietor of Bidder Firms a Director, Partner or Proprietor. The word "relative" is defined as under:

The Companies Act, 2013 Sec 2(77) "relative", with reference to any person, means any one who is related to another, if—

- (1) they are members of a Hindu Undivided Family;*
- (2) they are husband and wife; or*
- (3) A person shall be deemed to be the relative of another, if he or she is related to another in the following manner, namely:-*
 - a. Father including step-father,*
 - b. Mother including step-mother,*
 - c. Son including step-son,*
 - d. Son's wife,*
 - e. Daughter,*
 - f. Daughter's husband,*
 - g. Brother including step-brother,*
 - h. Sister including step-sister.*

WE FURTHER DECLARE THAT we have carefully read and understood the clause relating to 'Conflict of Interest' of Tender No. _____. The detailed Clause is as under:

"A bidder shall not have conflict of interest with other bidders for particular quoted item. Such conflict of interest can lead to anti-competitive practices to the detriment of Procuring Entity's interests. The bidder found to have a conflict of interest shall be disqualified. A bidder may be considered to have a conflict of interest with one or more parties in this bidding process for particular quoted item, if:

- a) they have proprietor/ partner(s)/ Director(s) in common; or*
- b) they receive or have received any direct or indirect subsidy/ financial stake from any of them; or*
- c) they have the same legal representative/ agent for purposes of this bid; or*

Signature

Stamp / Round Seal